§ 328.21 *Alphabetical list of code members*—Supplement R–II

[Alphabetical list of code members having railway loading facilities, showing price classifications by size groups for all uses except as separately shown]

Mine index No.	Code member	Mine name	Subdistrict No.	Low volatile seam	Shipping point	Railroad	Freight origin group No.	Price classification by size group No. 1	2	3	4	5	6	7	8	9	10
5731	Consumers Mining Corporation.	Consumers	9	Red Ash	Red Ash, Va.	N&W	21	C	C	D	D	A	A	A	H	H	H
7451	Franks, E. E.	Franks	9	Red Ash	Doran, Va.[1]	N&W	21	*	*	*	*	*	*	*	*	*	*
5735	Russ & Stilwell (S. W. Stilwell).	Russ & Stilwell No. 2.	9	Red Ash	Red Ash, Va.	N&W	21	C	C	D	D	A	A	A	H	H	H

[1] Denotes new shipping point. Shipping point at Richlands, Va., shall no longer be applicable.
*Indicates previously classified for these size groups.

FOR TRUCK SHIPMENTS

§ 328.34 *General prices for high volatile coals in cents per net ton for shipment into all market areas*—Supplement T–I

Code member index	Mine	Mine index No.	Seam	Base size: Lump over 2" egg 4" x 6"	Lump 2" and under, egg 3" x 6"	Lump ¾" and under	Egg 2" x 4", egg 2" x 6"	Stove 3" and under, nut 2" and under	Straight mine run	2" and under, slack	¾" and under, slack
				1	2	3	4	5	6	7	8
SUBDISTRICT NO. 1—BIG SANDY-ELKHORN											
CARTER COUNTY, KY.											
Knipp, Amos	Jessee No. 2	5687	No. 7	285	265	230	240	225	220	170	165
Sexton & Blankenship (Chas. Sexton).	Deer Creek	5734	No. 4	285	265	230	240	225	220	170	165
SUBDISTRICT NO. 3—HAZARD											
LEE COUNTY, KY.											
Cooper & Dunaway (J. G. Cooper).	Cooper	5707	Ida May	295	275	240	245	225	230	175	170
White Ash Coal Company (David Toler).	White Ash No. 1	5724	Bottom	295	275	240	245	225	230	175	170
SUBDISTRICT NO. 4—KANAWHA											
NICHOLAS COUNTY, W. VA.											
Cavendish, Homer D	Cavendish	5688	Eagle	285	265	250	250	225	240	185	180
SUBDISTRICT NO. 6—SOUTHERN APPALACHIAN											
ROCKCASTLE COUNTY, KY.											
Abney, Elijah, Jr	Black Diamond	5733	Horse Creek	285	265	240	240	225	230	175	170
CAMPBELL COUNTY, TENN.											
Lay, Floyd	Floyd Lay	5736	Rex	315	295	230	265	235	220	165	160
SCOTT COUNTY, TENN.											
Cross, Henry	Henry Cross No. 2	5718	Glen Mary	275	255	235	230	220	225	175	170
Kline, C. L.	C. L. Kline No. 3	5728	Glen Mary	275	255	235	230	220	225	175	170
Kline, C. L.	C. L. Kline No. 4	5729	Glen Mary	275	255	235	230	220	225	175	170
Kline, C. L.	C. L. Kline No. 5	5730	Glen Mary	275	255	235	230	220	225	175	170

§ 328.42 *General prices for low volatile coals*—Supplement T–II

[Prices in cents per net ton for shipment into all market areas]

Code member index name	Mine	Mine index No.	Seam	All lump	Egg: Larger than 3" top	Stove: 3" top size	Nut or pea: 1¼" top or less	Screened M/R	Straight M/R	1¼" screenings	¾" screenings
				1	2	3	4	5	6	7	8
SUBDISTRICT NO. 9—BUCHANAN COUNTY LOW VOLATILE AND RED ASH MINES IN VIRGINIA AND WILLIAMSON DISTRICTS—TAZEWELL COUNTY, VA.											
Consumers Mining Corporation	Consumers	5731	Red Ash	325	325	320	270	300	235	175	170
Russ & Stilwell (S. M. Stilwell)	Russ & Stilwell No. 2	5735	Red Ash	325	325	320	270	300	235	175	170

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Chapter IV—Petroleum Conservation Division

PART 401—PETROLEUM CONSERVATION ORDERS

PART 402—CERTIFICATES OF CLEARANCE FOR MOVEMENTS OF PETROLEUM AND PETROLEUM PRODUCTS IN INTERSTATE COMMERCE

PART 403—REGULATIONS GOVERNING REPORTS AND INSPECTIONS OF FACILITIES AND AGENCIES FOR THE PRODUCTION, PROCESSING, STORAGE AND TRANSPORTATION OF PETROLEUM AND PETROLEUM PRODUCTS

AMENDMENT OF REGULATIONS

By virtue of the authority vested in me by the Executive Order No. 7756 of December 1, 1937 (30 CFR 401.1), the following regulations and amendments are hereby prescribed for the administration and enforcement of the act of February 22, 1935 (49 Stat. 30; 15 U.S.C. secs. 715–715 *l*), as amended by the act of June 14, 1937 (50 Stat. 257), by the act of June 29, 1939 (53 Stat. 927), and by the act of June 22, 1942 (Pub. Law 624, 77th Cong.).

Section 401.3 of this part (E.O. 7758 of December 1, 1937, 2 F.R. 2669, 2670), except in so far as it applies to or affects any violation thereof or any action which has been or may hereafter be taken because of such violation, is hereby revoked.

Section 401.4 of this part (Administrative Order 1263, April 1, 1938, 3 F.R. 689), is hereby revoked.

Sections 402.1 to 402.21, inclusive, of this part (E.O. 7757 of December 1, 1937, 2 F.R. 2664–2669), except in so far as they apply to or affect any violation thereof or any action which has been or may hereafter be taken because of such violation, are hereby revoked.

Section 403.1 of this part is hereby amended to read as follows:

§ 403.1 *Designated areas.* Until further order, the regulations in this part shall be applicable only to that part of the State of New Mexico included within the counties of Lea and Eddy, to that part of the State of Texas included within the counties of:

Anderson, Andrews, Angelina, Aransas, Austin, Bee, Borden, Bowie, Brazoria, Brazos, Brooks, Burleson, Calhoun, Cameron, Camp, Cass, Chambers, Cherokee, Cochran, Colorado, Crane, Crockett, Dawson, DeWitt, Duval, Ector, Fayette, Fisher, Fort Bend, Franklin, Gaines, Galveston, Garza, Glascock, Goliad, Gonzales, Gregg, Grimes, Hardin, Harris, Harrison, Hidalgo, Hockley, Houston, Howard, Jackson, Jasper, Jefferson, Jim Hogg, Jim Wells, Karnes, Kenedy, Kleberg, Lavaca, Lee, Liberty, Live Oak, Loving, Lynn, Madison, Marion, Martin, Matagorda, Midland, Mitchell, Montgomery, Morris, Nacogdoches, Newton, Nueces, Orange, Panola, Pecos, Polk, Reagan, Red River, Reeves, Refugio, Rusk, Sabine, San Augustine, San Jacinto, San Patricio, Scurry, Shelby, Smith, Starr, Terry, Titus, Trinity, Tyler, Upshur, Upton, Victoria, Walker, Waller, Ward, Washington, Webb, Wharton, Willacy, Wilson, Winkler, Wood, Yoakum, and Zapata, and to the entire State

of Louisiana, which area is hereinafter referred to as the designated area.

Section 403.2 of this part is hereby amended to read as follows:

§ 403.2 *Federal Petroleum Board designated to administer these regulations.* The Federal Petroleum Board, hereinafter referred to as the board, is hereby designated to administer the regulations prescribed in this part, under the supervision of the Secretary of the Interior.

Section 403.5 of this part is hereby amended to read as follows:

§ 403.5 *Measurements; records.* Every producer, transporter, storer and refiner in the designated area shall accurately gauge and measure all petroleum and petroleum products before any part thereof leaves his possession or control. No means or device which prevents or hinders such accurate measurement shall be used. Complete and accurate records of all such measurements shall be kept up to date and retained as provided in § 403.6 hereof, and shall be open to the inspection of any person authorized by the Secretary of the Interior or by the board.

Section 403.6 of this part is hereby amended to read as follows:

§ 403.6 *Records.* From the effective date of this order the following records shall be made and retained accurately and completely showing the following facts with respect to production, refining, processing, manufacturing, transporting, withdrawing or otherwise handling petroleum or petroleum products in the designated area: *Provided*, That when such records have been retained for a period of not less than three (3) years the board may, upon written request of the operator, grant permission to destroy or dispose of such records:

(a) By producers:

(1) *Location, wells, allowable production.* The location of the producing properties, the number and location of wells thereon, and the allowable production for each property and well as prescribed by the proper State agency.

(2) *Inventories.* An opening and closing inventory of the crude petroleum on hand each 24-hour day.

(3) *Production.* The daily production in barrels of petroleum produced from each lease and well (ascertained by the application of acceptable operating practice as to wells which are produced into common tankage and of which no separate daily gauge is made), with a notation of the allowance made for basic sediment and water, and the tanks, identified by number and location into which the petroleum is run.

(4) *Consumption.* The amount of petroleum consumed upon each property daily.

(5) *Deliveries.* A daily record of all deliveries of petroleum or petroleum products, showing the names and places of business of all persons to whom such petroleum or petroleum products are delivered, whether purchasers, consignees or transporting agencies, the quantity involved in each delivery, transportation or other disposition, the identity of the means of transportation by which the petroleum or products are removed.

(6) *Tickets.* Gauge tickets, and run tickets, as made by the employees actually performing or observing the operations to which such records relate.

(7) *Other records.* Such other records as may now be required under the rules and regulations of other governmental agencies, State or Federal, which supervise, regulate or tax the production of petroleum.

(b) By every purchaser, refiner, storer, shipper or consignor of petroleum or petroleum products, by every casinghead gasoline plant, and by every person dealing in petroleum or petroleum products as a factor, broker, buyer or seller.

(1) *Inventories.* An opening and closing inventory of petroleum and petroleum products on hand each 24-hour day.

(2) *Receipts.* The daily receipts of petroleum and the petroleum products showing the amount received, the place and date of each receipt, the tanks identified by location and number into which received, the names and addresses of all producers or other persons from whom the crude petroleum and the petroleum products were received, a description identifying the transporting agency by which received.

(3) *Consumption.* The amount of petroleum and petroleum products used or otherwise disposed of daily showing the amount run to stills and to cracking units and the amount and type of petroleum products refined, processed or manufactured.

(4) *Deliveries; purchasers; transporter.* A daily record of all deliveries of petroleum and petroleum products including the names and addresses of purchasers and a description identifying the transporting agency delivering the same.

(5) *Reports of operations.* Crude, pumping, still, transfer, and yield reports as made by the employees actually performing or observing the operations to which such records relate.

(6) *Other records.* Such other records as may now be required under the rules and regulations of other governmental agencies, State or Federal, which supervise, regulate or tax the purchasing, refining, storing, shipping or consigning or otherwise dealing in as a factor, broker, buyer or seller of petroleum and petroleum products.

(c) By every person operating a reclamation plant:

(1) *Inventories.* An opening and closing inventory of all petroleum and petroleum products on hand each 24-hour day.

(2) *Receipts.* The number of barrels of each kind of petroleum and petroleum products which came into the possession of such plant daily, the name and address of each person from whom possession was acquired, the location from which the petroleum and petroleum products were acquired, the quantities acquired from each prior possessor and from each location, a description identifying the transporting agency by which such petroleum and petroleum products were acquired. In case any petroleum or petroleum product is picked up or reclaimed by such plant from any creek, river, stream or the bed thereof, such record shall also contain information as to the apparent source of the petroleum or petroleum product before it went into such creek, river, stream or the bed thereof.

(3) *Reclamation; destination; identification.* The number of barrels reclaimed by such plant daily and the disposition thereof showing the names and addresses of purchasers, a description identifying the transporting agency used in making delivery.

(4) *Original operating records.* The original records made by the employees actually performing or observing the operations to which such records relate as required by subparagraphs (1), (2), and (3) of this paragraph.

(5) *Other records.* Such other records as may now be required under the rules and regulations of all other governmental agencies, State or Federal, which supervise, regulate or tax the reclaiming or handling of petroleum or petroleum products.

(d) By pipe lines:

(1) *Inventories.* An opening and closing inventory including averages of crude petroleum and petroleum products on hand each 24-hour day.

(2) *Receipts; consignors, consignees; origin; destination.* The daily receipts of all petroleum and petroleum products showing the kind, grade and quantity received, the names and addresses of the consignors, the names and addresses of the consignees, the points of origin and destination.

(3) *Locations; persons; transporting agencies.* In case of the first transporting pipe line, and where possible in cases of subsequent transporting pipe lines, the location of the properties where the petroleum or petroleum products were produced, refined, processed or manufactured, the names and addresess of persons removing the petroleum or petroleum products from the properties where produced, refined, processed or manufactured, and a description identifying the transporting agency used in making delivery from such properties.

(4) *Diversion, stoppage.* A record of all shipments of petroleum or petroleum products diverted prior to reaching the original point of destination or stopped in the course of transportation, showing the disposition thereof.

(5) *Shipping documents.* Copies of all run-tickets, way bills, division and transfer orders and other documents used in the transportation of petroleum or petroleum products.

(6) *Other records.* Such other records as may now be required under the rules or regulations of other governmental agencies, State or Federal, which supervise, regulate or tax the transportation of petroleum or petroleum products.

(e) By transporting agencies, other than pipe lines:

(1) *Shipments.* The daily shipments of all petroleum and petroleum products showing the kind, grade and quantity transported, the names and addresses of the consignors, the names and addresses of the consignees, the points of origin and destination, and in the case